

		California Rules of Court, Rule 3.300 provides, “(a) Definition of ‘related case’ A pending civil case is related to another pending civil case, or to a civil case that was dismissed with or without prejudice, or to a civil case that was disposed of by judgment, if the cases: (1) Involve the same parties and are based on the same or similar claims; (2) Arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical questions of law or fact; (3) Involve claims against, title to, possession of, or damages to the same property; or (4) Are likely for other reasons to require substantial duplication of judicial resources if heard by different judges.” If any party believes this case and the <i>Kinder</i> case involve related issues as defined under Rule 3.300(a), they shall promptly file notices of related case as required under Rule 3.300(b), which states, “Whenever a party in a civil action knows or learns that the action or proceeding is related to another action or proceeding pending, dismissed, or disposed of by judgment in any state or federal court in California, the party must serve and file a Notice of Related Case.” Any remaining concerns about inconsistent results can be raised through a motion to consolidate this case with the <i>Kinder</i> case, if appropriate, under Rule 3.350 and Code of Civil Procedure section 1048, which states, “(a) When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.”
10	30-2022-01274579 Parker vs. Lee	Motion – Other (to Modify Preliminary Injunction) Plaintiff Ana Christina Parker’s (Plaintiff) Motion to Modify Preliminary Injunction (Motion) is DENIED. On 11-29-22, the Court entered the following preliminary injunction in this action pursuant to Plaintiff’s motion: “Defendants Lee, Nguyen, and their agents, servants, employees, and representatives, and all persons acting in concert with them, are enjoined and restrained during the pendency of this action from engaging in, committing, or

performing, directly or indirectly, as to the four (4) foot wide Strip of Land described in paragraphs 5 through 9 of the amended complaint, from obstructing or interfering with Claudia's access to and use of such Strip of Land for her foot travel egress from the rear of her home at 11592 Desmond Street, Garden Grove, CA 92841 (Lot 35), to her front curb, and ingress from the front curb to the rear of her home, which Strip of Land appears to encroach into defendants' contiguous property at 11602 Desmond Street, Garden Grove, Ca 92841 (Lot 34) at such Strip of Land's widest point from her front planter by approximately three (3) feet."

(see ROA 49).

Plaintiff moves for an order modifying the Court's 11-29-22 preliminary injunction to add the following:

" 2(a) to allow Ana, or her husband, Erik , or their professional gardener, to level, compact, and thereafter maintain the filled- in 4 trench and surrounding area within the 4-foot wide Strip of Land so that it be safe upon which her mother, Claudia, and her daughter, Ana, may traverse (a) for Claudia or Ana to carry shopping/food packages to and from the front curb to the kitchen rear of her Lot 35; and

(b) to allow Ana and her husband, Erik Parker, level access over the Strip of Land with their lawnmower to reach Lot 35's front lawn and otherwise for them or her gardener regularly to cut and maintain the Strip of Land without risk of tripping or falling into holes or depressions in the filled - in, uncompacted Strip."

Code of Civil Procedure section 553 states: "[i]n any action, the court may on notice modify or dissolve an injunction or temporary restraining order upon a showing that there has been a material change in the facts upon which the injunction or temporary restraining order was granted, that the law upon which the injunction or temporary restraining order was granted has changed, or that the ends of justice would be served by the modification or dissolution of the injunction or temporary restraining order."

Here, Plaintiff contends that the 11-29-22 preliminary injunction must be modified because Defendants have dug another trench

		on the Strip of Land after Plaintiff filed her initial Motion for Preliminary Injunction which has caused an unsafe condition on the Strip of Land. In Opposition, Defendants contend that the Motion must be denied because the alleged trench on the Strip of Land has been filled in and leveled. Defendants submit evidence that as of January 2024, the Strip of Land is smooth, and that their tenants use it to access their property daily. (Le Decl., ¶ 7, Exhibit D.) The Court has reviewed the photographs submitted by Defendants and agree that there is currently no material change in the facts upon which the preliminary injunction was granted. Therefore, modification of the preliminary injunction is not appropriate, and Plaintiff's Motion is DENIED. The Court does not consider Defendants' arguments in Opposition that the preliminary injunction should be dissolved entirely because Plaintiff's Motion only sought to modify the preliminary injunction. "As a general rule, the trial court may consider only the grounds stated in the notice of motion." (<i>Luri v. Greenwald</i> (2003) 107 Cal.App.4th 1119, 1125.) Defendants are to give notice.
12	30-2022-01279372 Rucker vs. Harbor View Hills Community Association	Motion for Protective Order Plaintiff's Motion to Quash Subpoena (filed on 11/9/23) is DENIED as moot. This lawsuit involves Plaintiff's application to build a home on 2700 Harbor View Drive. In this motion, Plaintiff contends the subpoena improperly seeks documents related to Plaintiff's mortgage loans for his existing home at 3100 Harbor View Drive rather than the disputed property at 2700 Harbor View Drive. In opposition, Defendant states this was a clerical error, and it has served a revised subpoena with the correct address. Plaintiff has served a motion to quash the revised subpoena, which is set for hearing on 2/13/24. Therefore, the Court will address the parties' substantive arguments regarding the revised subpoena at the hearing on 2/13/24, making the present motion moot.